

Smt. Sahil Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2018 · WRIT - C No. 17935 of 2018 · **Writ not pressed; liberty to approach authority under 6.5(b).**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of Smt. Sahil Devi's writ as not pressed, granting liberty to approach the concerned authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005 for similar relief. The electricity dispute was not decided on merits.

FACTUAL SUMMARY

Smt. Sahil Devi filed Writ-C No. 17935 of 2018 in the Allahabad High Court against the State of Uttar Pradesh and four others, seeking relief in an electricity-supply matter. At the hearing in the Chief Justice's Court, her counsel stated that the petitioner did not press the writ and asked for liberty to approach the concerned authority under clause 6.5(b) of the Electricity Supply Code, 2005 for the same relief as prayed in the petition. The State was represented by the Chief Standing Counsel and Mahboob Ahmad.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

liberty to approach 6.5(b) authority

HOLDING

Where the consumer does not press a writ and seeks liberty to approach the concerned authority under clause 6.5(b) of the Electricity Supply Code, 2005 for similar relief, the petition is disposed of as not pressed with that liberty. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY GRIEVANCE

Writ not pressed; no finding on the claim or on the application of clause 6.5(b). ¶ 1